

Chapter 3

The reign of terror

Virtue without Terror is powerless.

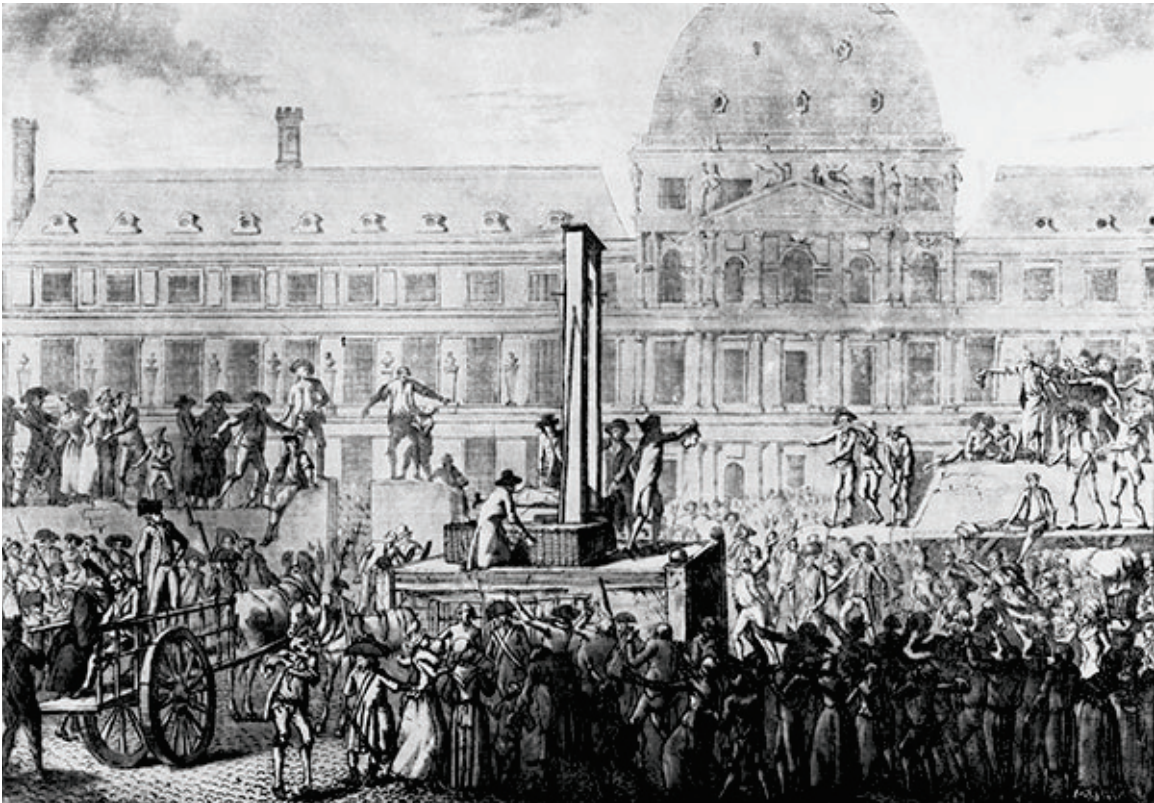
Maximilien Robespierre, Year II

Eugene V. Walter's pioneering work on terrorism, a historical-anthropological study of the 19th-century Zulu state under King Shaka, set out a fundamental division between the 'regime of terror' and the 'siege of terror'. Walter's intention seems in part to have been to challenge the liberal assumption that naked violence can never provide the basis for a stable political regime. This was an important point to register about the role of violence in politics. Interestingly, though, it was a group of liberals who initiated the first modern regime of terror. Indeed, the first dictionary definition of the word 'terrorism'—'*système, régime de la terreur*'—was offered by the Académie française in 1798 in the light, plainly, of recent French experience. To get a perspective on the uses of political intimidation we need to start from this point.

Terror and purification

In its 'Year II' (1793–4), the French republic, born with the deposition and execution of King Louis XVI in autumn 1792 ([Figure 5](#)), was under threat from foreign invasion and internal rebellion. In July 1792, the National Assembly had declared *la patrie en danger* (the fatherland in danger), and in August 1793 it decreed a *levée en masse*, mobilizing the whole French nation to defend the country. Finally, in October, it declared terror 'the order of the day', to preserve

the Revolution against its enemies: kings and aristocrats (though most of the 10,000-odd victims of 'the Terror' were to be ordinary people, whose main offence might be, for example, to support their local clergyman in his refusal to accept the state's re-organization of the Catholic Church). The Committees of Public Safety and General Security, even more than the Convention from which they sprang, represented the progressive avant-garde of the French Revolution. They pioneered representative democracy and equality before the law. It was their adoption of terror that first imprinted the word 'terrorist' in the political lexicon, and transformed the Revolution in the eyes of many outsiders from a liberating to a destructive force. At the same time, their rationalism drove them to recast the justification of political violence, and especially lynching—the most problematic kind of violence, being the most threatening to an ordered society. In the circumstances of public alarm and excitement, such killings could not be prevented, but they could not be allowed to appear random or irrational.



5. The beginning of the Terror in revolutionary France: the first execution by guillotine, in the Place du Carrousel, Paris, 13 August 1792.

Their motivation provides a key to the distinctive nature of modern terrorism. At one level, the revolutionaries may seem to have acted as crusaders or millenarians, waging holy war against the infidel. Revolutionary language often sounded like this, but there was a crucial difference. The Reign of Terror was informed by the Enlightenment assumption that the social order can be changed by human agency. For a long time, those who were prepared to defend the terrorists did so on the grounds that their action was rational, because inevitable, in the circumstances. Certainly the Revolution as the Jacobins saw it was under threat in 1792–3, from both external and internal enemies. But in fact the Terror reached its height with the truly terrifying law of 22 prairial Year II (1794)—depriving the accused of the right to counsel or to call witnesses, and empowering the revolutionary tribunal to execute suspects on the basis of moral conviction—at a time when both these threats were receding. (A pattern that would reappear in future bouts of state terror, as we shall see.)

More telling still is the way that the radical revolutionaries defined—or invented—their enemies in relation to their special vision of the Revolution. The men who dominated the Committee of Public Safety, Robespierre and Saint-Just, like the editor of *L'ami du peuple* Jean-Paul Marat, invested the people with a republican virtue that was often too sublime for the real world. They framed issues in absolutes and opposites: Robespierre's rhetoric invoked 'all the virtues and all the miracles of the Republic' against 'the vices and the absurdities of the monarchy'. Counter-revolutionaries were labelled monsters, ferocious beasts, vultures, leeches, or—if allowed human status at all—brigands, and were found even more frequently among the lower orders than the aristocracy. There might be a monarchist or a 'non-juring' priest (one who refused to accept the Civil Constitution of the Clergy) under every bed. Along with these negative or visceral identifications went the positive identification of revolutionary justice, in the form of lynching. Marat argued from the outset that such killing was an imprescriptible right of the sovereign people: the natural violence required to resist oppression and preserve liberty against tyranny.

Altogether this provided an ideological charter for the most extreme action, without compunction or remorse. One of the Convention's commissioners (*Représentants en mission*) sent out from Paris to bring the provinces under control announced 'I am purging the land of liberty of these monsters according to the principle of humanity.' When the counter-revolutionary rebellion at Lyon was crushed in November 1793 and the city—renamed Commune-Affranchie—

placed under an openly terrorist commission, one of its declared objectives was the ‘extirpation of fanaticism’, that is, religion. The future police chief Fouché exulted, ‘Lyon no longer exists!’

Purge, extirpation: such language permitted massacres like the ferocious assault on the rebellion in the Vendée by the ‘infernal columns’ of the Republican army—labelled genocide (*le Génocide franco-français*) by a recent historian, or the mind-boggling *noyades*—mass drownings in the River Loire. But what was such terror intended to achieve? And what did it achieve? Extirpation is different from intimidation or persuasion. Were the dead simply to be eliminated, or to serve as an awful warning *pour encourager les autres*? Were the terrorists just too pressed for time to attempt to convert the counter-revolutionaries, or did they think them beyond saving by force of argument? In trying to unpick this issue, we can begin to establish a basic repertoire of the functions of terror. Three key motives may be identified: vengeance, intimidation, and purification. The ‘punitive will’ identified by historians of the Revolution operated at every level from private through local to national: the more general the level, the more exemplary the function, as violence became symbolic rather than personal. The function of violence as moral agency—very clearly enunciated by Marat, for instance—was the Revolution’s most distinctive translation of premodern into modern political logic.

White, black, red terror

Did all this constitute, in fact, a ‘system or regime of terror’, as the Académie’s definition had it? How effective was it? It is hard to say how far ordinary people were ‘terrorized’, or whether the level of actual public compliance—as distinct from rhetorical protestations of revolutionary fervour—was much altered by the Terror. (Certainly, obedience remained erratic.) And it is also uncertain whether the ‘terrorists’ were a small group trying to coerce the public, or in effect the agents of public insecurity and anger. But even if it was a kind of mass self-terrorization, like the *Grande Peur* (Great Fear) which had swept through rural France at the start of the Revolution, it retained a distinct and perilous political logic: the notion that violence could change political attitudes.

The French Revolution’s ruthless and systematic use of violence created a model for the application of terrorizing force by the holders of state power over the

subsequent couple of centuries. Although the prime exponents of terrorism ‘from above’ were overtly repressive autocracies and despotisms, or radical revolutionary regimes like the Bolsheviks during the Russian Civil War, in times of crisis constitutional states have also unleashed ferocious repressive action—as in France during the crushing of the Paris Commune in 1871 and the June days of 1848. The USA tolerated (to say no more) the persistent, systematic terrorization of the southern black community by the Ku Klux Klan, as well as the less dramatic use of intimidatory violence by employers against labour organizations.

This *sub rosa* ‘white terror’, as it is often called, in defence of established social or political orders forms a constant undercurrent in modern history. (Some prefer to say ‘black’, though whiteness aptly reflects both symbolic political colours like those of the Bourbons and Romanovs, and the actual garb of white-supremacist terrorists such as the Ku Klux Klan.) The efficacy of direct action became a kind of subtext to the dominant modern liberal narrative of the evolution of consensual representative institutions. Its most resonant exposition was provided by Georges Sorel, whose writings express (however unsystematically) a fierce hostility to the decadence of turn-of-the-century bourgeois civilization. Sorel became and remains sensational because of his explicit embrace of violence as the antithesis of bourgeois security: in his seminal *Reflections on Violence*, he held that the middle class was cowardly and always backed away from violence, which had the power to revitalize the great nations ‘at present stupefied by humanitarianism’. His support for revolutionary syndicalism and the weapon of the general strike may suggest that he was a revolutionary, but he is more plausibly understood as a ‘conservative moralist’—whose ultimate aim was to impel the middle class to recover something of its former dynamism. Thus Sorel’s work offered intellectual aid not only to left-wing opponents of parliamentary liberalism but also to fascists.

It has been cogently argued that Italian fascism was not terrorist, either doctrinally or actually, though it was of course expressly committed to violence in the seizure and maintenance of state power. Its leading ideologue, Sergio Panunzio, in fact developed a theory of violence which (in contrast to Marx, Engels, and Lenin) carefully distinguished between licit and illicit violence. Licit violence was the use of force for revolutionary ends—in a situation that could best be characterized as civil war. Violence was applied directly to enemies of fascism, and, to the extent that it was intimidatory rather than directly coercive,

its victims could avoid it by changing their political position. Terrorism, on the other hand, Panunzio defined as indirect violence, attacking the innocent—noncombatants, women, children, the old, the unarmed, the helpless—with the intention of intimidating others. He maintained that such indiscriminate violence was illicit, because its victims could not adapt their behaviour to avert it; perhaps a surprising prohibition for a fascist, but one to which the fascist regime seems to have by and large adhered after coming to power. Even the notorious Special Tribunal for the Defence of the State, though it clearly violated the procedural rules of justice prevalent in liberal democracies, was qualitatively different from institutionalized terrorism: the system was repressive but not terroristic.

The argument here turns on what Hannah Arendt accepted as ‘the surprisingly small number and the comparatively mild sentences meted out’ by the Tribunal, which in the seventeen years of its existence (from 1926 to 1943) passed no more than forty-seven death sentences, some of which were not carried out. But statistics are tricky here: what total might be regarded as the numerical threshold of terrorism? As with other forms of terror, crude numbers may be less significant than atmosphere. Many people still think that the fascist *squadristi* created a ‘reign of terror’ sufficient to subvert the parliamentary system in the early 1920s. The exact reach of terror, and its relation to measurable violence, remains obscure. Clearly, the homicidal will and performance of both Nazi Germany and Stalin’s USSR were vastly, almost immeasurably, greater than Italy’s. But was it just the scale of destruction that made them terrorist regimes? It may be that Italian fascism’s exaltation of violence, its ethos of war both external and internal, its remorseless attempt to project combat into all spheres of life, sufficiently undermined stable social expectations as to qualify as terrorist in effect if not in intent.

Hitlerism and Stalinism are both routinely labelled terrorist regimes but, as with the French original, there is a question over how far their conduct represented terrorist manipulation rather than popular will. It certainly resulted in the mass murder not only of declared opponents but of groups unilaterally, often incomprehensibly, designated as public enemies (*Reichsfeinde* in Nazi parlance) or threats. Elimination and intimidation may be logically distinct, but in practice this programme served to paralyse opposition and enhance the state’s freedom of action. The same was true of the equally murderous regime of Stalin in the USSR. The arraignment of hundreds of thousands of people before Soviet Special Boards, whether as class enemies (Kulaks, for instance) or suspected

spies or ‘members of the family of a traitor’, certainly lacked any of the safeguards of ‘due process’—and often any specific charge—and served to crush all open political dissent. The breadth of the possible indictments created a climate of fear, and the process of indiscriminacy was taken to its limit in 1938 with the idea of targeting ‘the silent’—those who had precisely avoided political commitment of any kind. Yet its purpose, at least as implied by chief prosecutor Vyshinsky himself, was elimination rather than intimidation: ‘When it is a question of annihilating the enemy, we can do it just as well without a trial.’

The deadly pinnacle of genocide, the special crime of the 20th century, can be seen as the ultimate stage of terrorist regimes. Mass murder is unquestionably a terrifying phenomenon; but there may be problems in classifying genocide—as distinct from mass murder—as a terrorist act. Its very modernity points to its logic, which is ethnic rather than ideological. The Turkish roundup of Armenians during the First World War has been regarded as genocide by those who do not accept the Turkish state’s explanation that it was a national security measure triggered by the danger posed by manifest Armenian disloyalty. It seems fairly clear, though, that on any explanation the objective was not to intimidate the Armenians (or by example any other national minority within the Ottoman state), but primarily to remove the strategic threat they represented. This was done cruelly and recklessly, and the government was certainly responsible for tens or hundreds of thousands of deaths, even if it did not directly order the harshness of local implementation.

In the same way, it does not make sense to read the Nazi measures against the Jews as terrorist, although this is routinely done, as in the assertion that ‘Hitler terrorized the Jews into submission’—as if he faced a problem of Jewish resistance. In fact, Nazi laws, by specifically ruling out assimilation, eliminated the possibility that Jews could adapt their behaviour (even to the extent of abandoning their religion) to avoid persecution. Nazism required not political, religious, or ideological, but biological, uniformity—and this lay outside the realm of political adaptation. Although Jewish submission was useful to the German authorities, it was not their goal. Their aim was a ‘purification’ which echoed that of the first terrorist regime in revolutionary France, but indirectly: the purity pursued here was not of virtue but of blood.

Still, the myth of the fascist and Nazi seizures of power (*Machtergreifung*) remains the strongest support for what is probably the most potent fantasy of

terrorism in the modern age. In his clear-headed analysis, Thornton identified ‘disorientation’ as ‘the objective *par excellence* of the terrorist’, suggesting that it is achieved partly by successfully demonstrating that the incumbent regime cannot guarantee order, and still more by the destruction of the social framework. Hannah Arendt said that the ultimate point of the terrorization process is the isolation of the individual from customary social supports. If terrorism could achieve this, it might create a situation in which the atomized masses eventually turn to the terrorists themselves as saviours. Enforcement terrorism can operate through the machinery of the state (whether open or secret) or through the more or less spontaneous action of vigilantes—to which the state sometimes turns a blind eye.

It is important to grasp how far state terror has dwarfed the puny efforts of rebels in the 20th century. (Only the Vietminh and Vietcong rivalled incumbent regimes in statistical terms.) Most writing on terrorism, focusing on anti-state actions, tends to sidestep this point; for instance, ‘state terrorism’ occupied only thirteen of the 768 pages in the *Encyclopedia of World Terrorism* (1997), and five of those were about ‘state-sponsored terrorism’, a different phenomenon. (But at least this section was there; in many studies of terrorism it is not.) State terror may not fit the common model of clandestine terrorism, but it may well have played a bigger role in undermining liberal norms and public confidence. (Box 3.)

Box 3

In combination, the Contra forces have systematically violated the applicable laws of war throughout the conflict. They have attacked civilians indiscriminately; they have tortured and mutilated prisoners; they have murdered those placed *hors de combat* by their wounds; they have taken hostages; and they have committed outrages against personal dignity.

Americas Watch, *Violations of the Laws of War by Both Sides in Nicaragua* (1985)

The atrocities I had heard about were not isolated instances, but reflected a consistent pattern of behaviour by our troops. There were unit commanders who openly bragged about murders, mutilations, etc. ...

They told me it was the only way to win the war; that the best way to win the loyalty of the civilian population was to intimidate it and make it fearful of us.

Edgar Chamorro, Affidavit submitted to the International Court of Justice, 1985

Free-range terrorism

The military or military-controlled regimes in Chile, Argentina, Peru, Brazil, Uruguay, and elsewhere, taking the socialist threat as justification, unleashed full-blown systems of terror designed to paralyse all left-wing activity. The keynotes of these systems, in which whole armies and police forces seem to have participated enthusiastically, were not only killing, but a perhaps more sinister and subversive structure of arbitrary imprisonment, torture, and ‘disappearance’. Though these must be described as ‘systems’ of terror, they were not comprehensible as such—rather the apparently uncontrolled action of variegated and overlapping security forces created a nightmarish situation that may perhaps be called Kafkaesque.

For Chileans, who had prided themselves on their democratic traditions, the whole ‘system’ was terrifyingly capricious. At its dark heart, though, was an eruption of brutality that was far from Kafka’s imagination. An Amnesty investigation following the wave of mass arrests in 1973–4 reported that:

methods of torture employed have *included* [sic] electric shock, blows, beatings, burning with acid or cigarettes, prolonged standing, prolonged hooding and isolation in solitary confinement, extraction of nails, crushing of testicles, sexual assaults, immersion in water, hanging, simulated executions ... and compelled attendance at the torture of others.

Within a short time, an equally formidable system of terror (called ‘total terrorism’ by one observer) emerged in Argentina. Here, as in Guatemala, El Salvador, and Nicaragua, terrorism—commonly known as ‘the Process’—was used not only by the state but also by rebels and free-floating ‘death squads’ formed to bolster the state’s repressive efforts. Whereas the rebel ERP (Ejército Revolucionario del Pueblo—People’s Revolutionary Army) and Montoneros killed some 700 people (according to government figures), more than half of

them military personnel, the 'Triple A' (AAA) death squad, established under the Perón regime, probably killed over 2,000. The AAA achieved a dramatic intensification of a tradition of sporadic quasi-fascist terrorist action by *grupos de choque* against socialists and strikers over half a century before the 1970s. (The Perónist labour syndicates also maintained their own paramilitary groups.) After the military takeover in 1976, the AAA was absorbed into an infrastructure of state terror whose victims came from almost all sectors of Argentine society. By mid-1976, abductions were running at an average of over five a day, and at least 9,000 *desaparecidos* never re-appeared. In all, the military regime killed somewhere between 10,000 and 30,000 of its people.

This regime involved a definite shift from the traditional terrorism of the shock groups—primarily assassination—to a large-scale campaign to root out 'subversion'—a very broad notion for military officers. General Videla defined as a terrorist 'not just someone with a gun or a bomb, but also someone who spreads ideas that are contrary to Western and Christian civilization'. The military regime set up some 340 secret detention camps where suspects were tortured and eventually disposed of—many of them thrown into the sea from aircraft—after giving information leading to further abductions. The secrecy may not itself have been deliberately designed to spread fear so much as to avoid the international condemnation that had afflicted the Chilean *junta*, but along with the institutionalization of torture it inevitably had that effect. Robert Cox, a perceptive journalist who witnessed the effects of the disappearances, wrote that 'it is difficult for the mind to grasp their awesome significance'.

What needs to be noted about this military 'crusade' is that it really got going after the threat to which it was a response had receded. Cox thought that the main explanation for the whole process was incompetence: 'The security forces were so inept in dealing with terrorism that they were driven by desperation to extreme methods and found themselves mimicking the terrorists.' But there was also the ever-present dynamic of vengeance. The guerrillas may 'only' have killed 600 or 700 people, but these included three federal police chiefs, five army generals, two admirals, and five senior air force officers. One of the most feared of the army commanders, whose sister was killed by rebels, became known as 'El Vengador'.

Ultraterrorism

Latin American death squads operated as an auxiliary to the counterterrorist actions of the state; but terrorism can also emerge where a significant group, formerly dominant, sees itself as threatened with abandonment by the state itself. This sense of betrayal has emerged where settler communities face the prospect of a negotiated settlement between the government and rebel terrorists, as happened in acute form in French Algeria towards the end of the Front de Libération Nationale's (FLN) independence campaign, and in a more diffuse way in Northern Ireland during the protracted and inconclusive 'peace processes'.

Algeria presented an acute problem because the overall prospects for eventual integration of the French community—the *pieds noirs*—within an independent FLN-controlled state were not bright. The stakes were high, and the settler community, like the army, was convinced that the military struggle against the FLN had already been won. When the hope that the return of Charles de Gaulle to politics would cement this victory in political terms proved false, a group of senior army officers, together with some *pied noir* leaders, formed the OAS (Organisation d'Armée Secrète; Secret Army Organization) in 1960 with the aim of provoking a rebellion among the Algerian French, or at least halting the government's negotiations with the FLN. These people were undoubtedly impressed by the way FLN terrorism had worked, though they do not seem to have formulated any clear strategic theory of how it might achieve their own very different objectives. They launched a murderous campaign in Algeria itself, whose most distinctive weapon was the new plastic explosives. By November 1961, the OAS could mount some 300 *plasticages* a month; and it killed 230 Muslims in a single week in May 1962. But the process of negotiation proved less vulnerable than many expected (Muslim retaliation was carefully controlled by the FLN), and the closest the OAS came to its aim of generating a settler revolt was a series of bloody but ineffective clashes between civilians and French troops in the Bab el Oued quarter of Algiers.

The next step was to carry its attacks into metropolitan France, though their likely political impact was even more obscure. De Gaulle himself was an obvious target, but despite its carefully cultivated image of paratroop-style effectiveness, most of the campaign turned into uncoordinated and often pointless *plasticages* that made the OAS not only unpopular but ridiculous. Poor public-relations work left the impression that most of its actions were mere revenge, *règlements de compte*. The overall effect of OAS terrorism was,

perhaps inevitably, counterproductive: it strengthened de Gaulle's position and allowed him to institute direct election for the French presidency (a key point in his reconstitution of the Fifth Republic); and it eliminated any viable future for the French population of Algeria (as well as making their reception in France distinctly chilly). But in the end, perhaps, none of this was the point. In the French army, whose refusal to back the rebels was crucial in preserving the Republic, some officers came to profess regret at their lack of courage. The rebel leaders were later incorporated in a nostalgic colonial cult: they had kept faith with the native Algerians (200,000 of them, in fact) whom France had recruited into the colonial army, and then abandoned; they became exemplars of moral integrity rather than careerism and legality.

The OAS did not provide a particularly inspiring model for reactionary activists, but such models play a less formative role on the right than on the left. What may be called 'vigilante' terror can emerge viscerally. An important and problematic example is the Loyalist terror campaign which began in Northern Ireland around 1966, in reaction to nationalist celebration of the fiftieth anniversary of the 1916 rebellion and the improving north-south relations signalled by the meetings between Sean Lemass and Terence O'Neill. The driving impulse for such organizations as the Ulster Volunteer Force—which borrowed the name of a famous citizen militia in the pre-1914 crisis over Irish Home Rule, but which unlike the IRA had no direct organizational continuity—was to preserve the status quo and block any change in Northern Ireland's constitutional status. Although some efforts were made to provide later Loyalist paramilitary groups (notably the Ulster Defence Association) with a more sophisticated political programme, based on a British civic ideology, their fundamental motivation remained negative—against Irish nationalism. The pattern of Loyalist violence was distinctly sectarian—the Catholic community was identified as the support base for the republican campaign. Unlike the OAS, Loyalist groups did not attempt to attack the government or British targets—though they were clearly suspicious of Britain's commitment to preserving 'the Union'. Most Loyalist operations were local; the spectacular car-bombing in Dublin in 1974 was an exception, yet this was arguably a very effective operation in its impact on 'southern' Irish opinion. The long-running and murky story of 'collusion' between some British security forces and the Loyalists is still unfolding, but it suggests that the paramilitaries had some reason to believe that the state was on their side.

Running through any account of state terror is the tension between ‘terror’ as a semi-random by-product of massive repressive violence, and ‘terrorism’ as a deliberately focused product of demonstrative violence. One notable authority suggests that ‘rule by violence and intimidation by those already in power against their own citizenry’ is ‘generally termed “terror” in order to distinguish that phenomenon from “terrorism”, which is understood to be violence committed by non-state entities’. Oddly, it seems that the former—vastly more murderous and widespread over the last century—has raised less public alarm than the latter. There was perhaps some consistency in the Soviet view in the early 1980s (inevitably dismissed as ludicrous special pleading by most Western writers at that time) that while communists embraced revolutionary violence, they ‘reject terrorism as a means of obtaining political objectives’; and that the main perpetrators of terrorism in Afghanistan were the US-backed guerrilla forces.